

Inst: Naresh Malik

IFSO

28/2/25

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**IN THE COURT OF SH. ANUJ KUMAR SINGH LD. CJM, PATIALA
HOUSE COURTS, NEW DELHI**

Misc. Application No. _____ of 2025

In

FIR No. 538/2024

IN THE MATTER OF:

State

..... Prosecution

Versus

Unknown Persons

....Accused

In Re:

Nimje Rutvik Sanjaybhai

....Applicant

Versus

State

..... Prosecution

FIR No. 538/2024 dated 27.11.2024

registered for offence U/s 318,319,61(2)

BNS,2023.

PS.: Special Cell, IFSO.

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Place: New Delhi
Dated: 20.02.2025

Applicant
(Through Counsel)

Through

Tushar Gupta

TUSHAR GUPTA

Advocate for the Applicant

Ph. 88601 04097

Ch. No-297, Patiala House Court,
New Delhi-110001

IN THE COURT OF SH. ANUJ KUMAR SINGH LD. CMM, PATIALA
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BNS,2023.

PS.: Special Cell, IFSO.

**APPLICATION BY AND ON BEHALF OF MR. NIMJE RUTVIK
SANJAYBHAI U/S 503 BNSS OR ANY OTHER APPROPRIATE
SECTIONS OF THE SANHITA FOR DE-FREEZING OF THE BANK
ACCOUNT NO. 0846142520 WITH KOTAK MAHINDRA BANK HAVING
IFSC CODE NO. KKBK0000811 IN THE INTEREST OF JUSTICE.**

Most Respectfully Showeth:

1. That the present application is being preferred by the applicant Mr. Nimje Rutvik Sanjaybhai U/s 503 BNSS or any other appropriate sections of the Sanhita for de-freezing of the bank account no. 0846142520 with Kotak Mahindra Bank having IFSC Code no. KKBK0000811 which had been marked debit freeze by the investigating agency in pursuance of the

complaint filed by one Mr. Arun Kuamr Jain with the Cyber Cell, IFSO and National Cyber Crime Reporting Portal.

2. That the Applicant is student who is currently pursuing his higher studies and on 15.10.2024 had received a sum of Rs 300 into his above-mentioned bank account.
3. That to the shock and surprise of the Applicant the bank account of the Applicant was been marked debit freeze for said transaction.
4. That upon inquiry it come to the knowledge of the Applicant that a complaint had been filed by one Mr. Arun Kumar Jain with Special Cell, IFSO regarding of cheating of Rs. 18.86 Cr by unknown persons in New Delhi and it has been alleged that out of the total sum, the payments made by the customer of the Applicant forms part of the alleged money trail through which the cheated amount had transferred from the complainant.
5. It is respectfully submitted that the Applicant is in no manner concerned with the present case and has been unnecessarily roped in the present case as the Applicant had no knowledge of the alleged offence.
6. That for the above-mentioned transaction the entire bank account of the Applicant has been marked debit freeze which is causing grave prejudice and hardship to the Applicant as the Applicant is not able to conduct his day-to-day transaction.
7. That the Hon'ble Delhi High Court vide its order dated 16.07.2021 in matter titled "**Vijay Kumar Sharma and Anr. Vs Directorate of Enforcement W.P.(C) 6236/2021**" had passed the following directions:

3. In the light of this submission of the petitioner, Mr. Mahajan, learned counsel for the respondent was granted time to obtain instructions. Today, he submits that as only the amounts as on date available in these bank accounts have been attached and therefore, the respondents have no objection if the concerned banks are directed to permit the petitioners to operate these bank accounts subject to securing the amount available in these accounts as on date.

4. In view of the aforesaid stand taken by the respondents, the three banks namely- Kotak Mahindra Bank, Nobel Cooperative Bank and

Punjab National Bank details whereof are noted hereinbelow are directed to permit the petitioners to operate these bank accounts subject to the available amount available in these accounts as on date being placed in FDRs in the name of the petitioners, which FDRs will not be released to the petitioners unless any orders to the contrary are passed by any competent Court or by the Appellate Tribunal....

5. Needless to state, once the aforesaid amount is secured by way of an FDR, the banks will permit the petitioners to operate these accounts, in the normal course of business.

(Emphasis Supplied)

8. That the Applicant undertakes to abide by all the conditions imposed by the Hon'ble Court.
9. That the present application has been filed in the most bonafide manner and in the interest of justice.

PRAYER

It is therefore most respectfully prayed that the Hon'ble Court may be pleased to:

- A. Pass necessary order and directions thereby directing de-freezing the bank account no. 0846142520 with Kotak Mahindra Bank having IFSC Code no. KKBK0000811 in the interest of justice.

AND

- B. Pass any other appropriate orders and directions as the Hon'ble Court deems it fit and proper in light of the facts and circumstances of the case.

It is prayed accordingly.

Place: New Delhi
Dated: 20.02.2025

Through

Applicant
(Through Counsel)

TUSHAR GUPTA

Advocate for the Applicant

Ph. 88601 04097

Ch. No-297, Patiala House Court,
New Delhi-110001

IN THE COURT OF Sh. Anuj Kumar Singh, Ld. CJM, Patiala House CourtSuit /Appeal No. FIR No. 538 of 2024

In Re:-

State

Piff / Applt. / Petitioner / Complainant

VERSUS

Unknown Persons

Defdt. / Respt. / Accused

KNOW ALL to whom these present shall come that I, Nimje Rutvik Sanjaybhai The above named
Applicant do hereby appoint.

Adv. Tushar Gupta
 D/4696/2020

Chamber No. 297, Patiala House Court,
 New Delhi

(herein after called the advocate/s) to be my/our Advocate in the above-noted case authorize them:-To act, appear and plead in the above -noted cause in this Court or in any other Court in which the same may be tried or heard and also in the appellate Court including High Court subject to payment of fees separately for each court by me/us.

To sign, file, verify and present pleadings, appeals, cross-objections or petitions for execution review, revision, withdrawal, compromise or other petitions or affidavits or other documents as may be deemed necessary or proper for the prosecution of the said case in all its stages subjects to payment of fees for each stage.

To file and take back documents, to admit and/or deny the documents of opposite party.

To withdraw or compromise the said case or submit to arbitration any difference or disputes that may arise touching or in any manner relating to the said case.

To take execution proceedings

The deposit, draw and receive money, cheque/s, cash and grant receipts hereof and to do all other acts and things which may be necessary to be done for the progress and in the course of the prosecution of the said case.

To appoint and instruct any other Legal Practitioner authorizing him to exercise the power and authority hereby conferred upon the Advocate whenever he may think fit to do so and to sign the power of attorney on our behalf.

And I/We the undersigned do hereby agree to ratify and confirm all acts done by the Advocate or his substitute in the matter as my/our own acts, as if done by me/us to all intents and purposes.

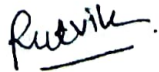
And I/We undertaken that I/We or my/our duly authorized agent would appear in Court on all hearings and will inform the Advocate for appearance when the case the case is called.

And I/We undersigned do hereby agree not to hold the advocate or his substitute responsible for the result of the said cause. The adjournment costs whenever ordered by the Court shall be of the Advocate, which he shall receive and retain for himself.

And I/O-fcv We the undersigned do hereby agree that in the event of the whole or part of the fee agreed by me/us to be paid to the advocate remaining unpaid he shall be entitled to withdraw from the prosecution on the said case until the same is paid up. The fee settled is only for the above case and above Court. I/We hereby agree that once the fee is paid. I/We will not be entitled for the refund of the same in any cause whatsoever and if the case prolongs for more than 3 years the original fee shall be paid again by me/us.

IN WITNESS WHERE OF I/We do hereunto set my/our hand to these presents the contents of which have been under stood by me/us on this.....20th..... Day of.....Feb.....2024
 Accepted subject to the terms of the fees.


 Advocate


 Client


 Client